

Prakash Kumar Pandey v. State of U.P.

Allahabad High Court · Division Bench · 5 August 2019 · WRIT - C No. - 25022 of 2019 · **Writ disposed; bill dispute relegated to Code 4.6**

HEADNOTE

A consumer who petitions the High Court for correction of an electricity bill already prepared by the department must pursue the billing-complaint route under Code 4.6 of the U.P. Electricity Supply Code, 2005. The Division Bench did not examine the bill on merits, directed a fresh application or objection under that provision within two weeks, and required a reasoned speaking order within six weeks of a fresh application.

FACTUAL SUMMARY

Prakash Kumar Pandey filed a writ petition in the Allahabad High Court seeking correction of an electricity bill already prepared by the department. He disputed that bill. Counsel submitted that an application in that regard had already been moved and was annexed as Annexure-3. The Court heard counsel and considered whether the writ was the proper forum for a billing dispute under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6

billing-complaint-forum

HOLDING

Where a consumer approaches the High Court in writ for correction of an electricity bill already prepared by the licensee, the appropriate remedy is an application or objection under Code 4.6 of the U.P. Electricity Supply Code, 2005; the writ court will not decide the bill on merits and will instead direct the consumer to apply under that provision for consideration in accordance with law by a reasoned speaking order. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy

A consumer who petitions the High Court for correction of an electricity bill already prepared by the department must pursue the billing-complaint route under Code 4.6 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

Merits of the bill were not examined; the petitioner was directed to apply under Code 4.6. ¶ 1